

Access to Information and Privacy Code, 2026

Members' right to records, a closed list of exceptions, protection of personal information, and records management

Draft for adoption by Council and ratification by the Electors | September 30, 2026

Status	Draft for adoption by Council Resolution and ratification by the Electors in a Ratification Vote.
Works with	Council Procedure By-law (Document 06), Part 8. Financial Administration Code (Document 09), section 15. First Nations Financial Transparency Act, sections 7 and 8, which continue to apply.
Protected	Amended only by Ratification Vote, except as section 19.2 permits.
Appeals	To the Appeals Panel under the Appeals and Complaints Code (Document 16).
Legal review	To be reviewed by legal counsel before adoption.

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ACCESS TO INFORMATION AND PRIVACY CODE OF THE FORT McMURRAY No. 468 FIRST NATION, 2026

WHEREAS Members cannot hold their government to account for decisions they are not allowed to read; and

WHEREAS Members are also entitled to have their own personal information protected from use or disclosure for purposes they did not agree to; and

WHEREAS the exceptions to the right of access shall be listed in this Code so that they cannot be widened by a letter, a Resolution, or a direction;

NOW THEREFORE the Council of the Fort McMurray No. 468 First Nation adopts this Code, subject to ratification by the Electors:

Part 1 **Interpretation and Application**

1 Citation and Application

- 1.1 This Code may be cited as the *Access to Information and Privacy Code of the Fort McMurray No. 468 First Nation, 2026*.
- 1.2 This Code applies to every Record in the custody or control of the First Nation, including Records created or received by a member of Council in carrying out the duties of office, wherever they are kept.
- 1.3 This Code applies to Records of a First Nation Business Entity that show payments between it and the First Nation, remuneration, fees, or benefits paid to a member of Council, or contracts with a Related Person.
- 1.4 This Code is in addition to sections 7 and 8 of the *First Nations Financial Transparency Act*, which continue to apply to the documents named in them.

2 Definitions

- 2.1 In this Code:
 - (a) "Exception" means a ground for refusing access listed in section 9.1;
 - (b) "Personal Information" means recorded information about an identifiable individual, including information about the individual's health, education, membership, housing, employment, finances, family, and contact details;
 - (c) "Record" means information in any form, including paper, electronic files, email, text messages, audio and video recordings, and photographs;
 - (d) "Records Officer" means the employee designated under section 3;
 - (e) "Related Person" has the meaning given in the Spending and Contracts Code;
 - (f) "Requester" means a person who makes a request under Part 3; and
 - (g) "Third Party" means a person, other than the Requester and the First Nation, who supplied information in a Record.
- 2.2 A term used in this Code that is not defined in section 2.1 has the meaning given in the Governance Constitution or, until it is in force, in the Customary Election Regulations or the Council Procedure By-law.

Part 2

Records Officer and Publication

3 Records Officer

- 3.1 Within thirty (30) days after this Code comes into force, the Band Manager shall designate an employee as Records Officer and publish the designation. The Records Officer shall not be a member of Council or Immediate Family of a member of Council.
- 3.2 The Records Officer decides requests under this Code and is not subject to direction by any member of Council on any individual request.
- 3.3 The Records Officer keeps the public register of the laws of the First Nation required by section 13.2 of the Governance Constitution.

4 Records Published Without Request

- 4.1 The Records Officer shall publish on the website of the First Nation, and keep available for at least ten (10) years, the following Records, within the times set by the Document that requires them or, if none is set, within thirty (30) days:
 - (a) every Document, by-law, and policy in force, and every amendment;
 - (b) every Band Council Resolution, and the minutes of every Council Meeting and meeting of Members;
 - (c) the budget, the capital plan, the quarterly reports, the audited consolidated financial statements, and the Schedule of Remuneration and Expenses;
 - (d) the Contract Registry, the Conflict Register, and the public register of interests and Gifts;
 - (e) the Housing List, the Portfolio Mandates, the quarterly reports of members of Council, and the reports of the Integrity Commissioner, the Finance and Audit Committee, and the Appeals Panel; and
 - (f) the log under section 16.
- 4.2 A Record that this Code or another Document requires to be published may not be refused under Part 4, except to remove Personal Information that the Document does not require to be published.

Part 3

Access Requests

5 Making a Request

- 5.1 Any Member may request access to a Record. Any person may request a Record that is required to be published under section 4.1, or a by-law, as subsection 86(2) of the *Indian Act* provides.
- 5.2 A request shall be in writing, delivered to the Records Officer in person, by mail, or by email, and shall describe the Record with enough detail to allow it to be found. No reason for the request is required.
- 5.3 The Records Officer shall acknowledge the request in writing within five (5) days, and shall say if the description is too vague to search and help the Requester to clarify it.

6 Time to Respond

- 6.1 The Records Officer shall give a written decision within thirty (30) days after receiving the request, granting access, granting access in part, or refusing access.
- 6.2 The Records Officer may extend the time once, by up to fifteen (15) days, by written notice to the Requester given before the thirtieth (30th) day, stating the reason and the number of Records remaining to be searched or reviewed. A second extension is void.
- 6.3 If no decision is given within the time allowed, the request is deemed refused on the next day, and the Requester may appeal under Part 8 on that day.

7 Fees

- 7.1 No fee shall be charged for a Record provided electronically, or for up to fifty (50) pages of paper copies.
- 7.2 For more than fifty (50) pages of paper copies, the fee shall not exceed the cost of copying and shall not exceed twenty-five cents (\$0.25) a page. A fee estimate shall be sent within the time in section 6.1, and the time stops running only while a fee over the free amount is unpaid after the estimate is sent.
- 7.3 No fee shall be charged to a Member for access to their own Personal Information.

8 Form of Access

- 8.1 Access shall be given by providing a copy in the form requested, or by allowing the Requester to inspect the Record, at the Requester's choice where practicable.

Part 4

Exceptions

9 Closed List of Exceptions

- 9.1 The Records Officer may refuse access only to information that falls within one of the following Exceptions, and shall name the Exception in the decision:
- (a) Personal Information about an individual other than the Requester, unless the individual consents or the information is described in section 10.1;
 - (b) advice or communications subject to solicitor-client privilege;
 - (c) a bid or proposal received in a procurement, until the contract is signed or the procurement is cancelled, after which this Exception ends;
 - (d) information whose release could reasonably be expected to threaten the safety of an identifiable person, where the Records Officer states the risk in writing to the Appeals Panel at the same time as the refusal;
 - (e) information whose release could reasonably be expected to prejudice the position of the First Nation in a negotiation that is under way, for so long as the negotiation continues;
 - (f) trade secrets or commercial, financial, or technical information supplied in confidence by a Third Party, whose release could reasonably be expected to cause significant harm to the Third Party; and
 - (g) information gathered in an investigation by the Integrity Commissioner, the Appeals Panel, or the police that is still under way, for so long as the investigation continues.
- 9.2 No other reason, including embarrassment, a pending Election, a pending vote, the volume of requests, or a direction from any person, is a ground for refusing access. A refusal on such a reason is void, and the Records Officer shall release the Record within five (5) days after the Appeals Panel says the reason is not an Exception.
- 9.3 Where only part of a Record falls within an Exception, the rest of the Record shall be released.

10 Information That Is Never Withheld

- 10.1 The following are not Personal Information for the purposes of paragraph 9.1(a), and shall not be withheld under paragraph 9.1(e) or (f):
- (a) the name, title, and duties of a member of Council, an Official, or an employee, and the remuneration, fees, benefits, expenses, and severance paid to a member of Council or the Band Manager;
 - (b) the name of a supplier, the amount, and the scope of a contract with the First Nation or a First Nation Business Entity, and the amounts paid under it;
 - (c) how each member of Council voted on any matter; and
 - (d) the reasons for any decision of Council.

Part 5

Personal Information

11 Collection, Use, and Disclosure

- 11.1 The First Nation shall collect Personal Information only for a purpose authorized by a Document of the First Nation, a funding agreement, or a law that applies to the First Nation, and shall tell the individual the purpose when it is collected.
- 11.2 Personal Information shall be used only for the purpose for which it was collected, or a consistent purpose.
- 11.3 Personal Information shall be disclosed only with the consent of the individual, as a Document of the First Nation requires or permits, as required by law or a court order, or to protect a person from serious and immediate harm.
- 11.4 No member of Council shall ask for or receive Personal Information about an identifiable Member held by Administration, except as a Document of the First Nation requires for a decision of Council.

12 Safeguards and Breaches

- 12.1 The First Nation shall protect Personal Information with physical, administrative, and technical safeguards suited to its sensitivity, including locked storage, access limited to employees who need it, and password protection and encryption for electronic Records.
- 12.2 Where Personal Information is lost, stolen, or disclosed without authority, the Records Officer shall notify each affected individual as soon as possible and within fourteen (14) days after learning of it, and shall report the breach to the Appeals Panel.

13 Access to and Correction of One's Own Information

- 13.1 Every individual may request access to their own Personal Information under Part 3.
- 13.2 An individual who believes their Personal Information is wrong may request a correction in writing. The Records Officer shall decide within thirty (30) days and, where a correction is refused, shall attach the individual's statement of disagreement to the Record.

Part 6

Records Management

14 Retention and Destruction

- 14.1 Within one hundred and eighty (180) days after this Code comes into force, Council shall adopt by Resolution a records retention schedule stating how long each class of Records is kept, consistent with the following minimum periods:
- (a) Band Council Resolutions, minutes, Documents, by-laws, and Election and vote results: permanently;
 - (b) financial Records, contracts, and the Records supporting the audited statements: at least seven (7) years after the end of the fiscal year to which they relate; and
 - (c) Records about land, membership, and Treaty or Aboriginal rights: permanently.
- 14.2 No Record shall be destroyed except under the retention schedule. No Record that is the subject of a request, an appeal, an investigation, or a legal proceeding shall be destroyed until the matter is finally decided.

15 Records of Members of Council

- 15.1 Records created or received by a member of Council in carrying out the duties of office, including messages on personal devices and accounts, are Records of the First Nation. A member of Council shall provide them to the Records Officer on request for the purposes of this Code.

Part 7

Public Log

16 Log of Requests

- 16.1 The Records Officer shall keep a public log showing, for each request, the date received, the date of the decision, whether access was granted, granted in part, or refused, and each Exception relied on. The names of Requesters shall not be shown.
- 16.2 The log shall be updated within two (2) business days after each decision and published on the website of the First Nation.
- 16.3 Each year, the Records Officer shall report to the Annual General Assembly the number of requests, the average time to respond, the number of deemed refusals, the Exceptions relied on, and the number and outcome of appeals.

Part 8

Appeals and Enforcement

17 Appeal to the Appeals Panel

- 17.1 A Requester who is refused access in whole or in part, whose request is deemed refused, or who objects to a fee or an extension, and an individual refused a correction, may appeal to the Appeals Panel under the Appeals and Complaints Code within sixty (60) days after the decision or deemed refusal.
- 17.2 The Appeals Panel may examine any Record in issue, in private, and shall decide the appeal within twenty (20) days after it is filed.
- 17.3 The Appeals Panel may order the Record released in whole or in part, confirm the refusal, waive or reduce a fee, or order a correction. A Record ordered released shall be released within five (5) days after the order.
- 17.4 Until the Appeals Panel is established, an appeal under this section shall be heard by a lawyer or retired judge who is not a Member, an employee of the First Nation, or Immediate Family of a member of Council, selected by Council by Resolution.

18 Breaches

- 18.1 No person shall destroy, alter, conceal, or refuse to produce a Record to prevent access under this Code, or direct another person to do so.
- 18.2 A member of Council who directs a refusal for a reason that is not an Exception, or who breaches section 11.4 or 18.1, is in breach of the Conduct and Conflict of Interest Code.
- 18.3 An employee who breaches this Code is subject to discipline under the Administration and Personnel Code. An employee who refuses an unlawful direction under this Code is protected under the Whistleblower Protection Code.

Part 9

Amendment and Coming into Force

19 Amendment

- 19.1 This Code is a protected Document. It may be amended only with the approval of the Electors in a Ratification Vote, after the full text of the proposed amendment has been published for at least thirty (30) days. Council may not suspend any provision of it.
- 19.2 Council may amend this Code by Resolution, without a vote of the Electors, only to add a Record to section 4.1 or 10.1, shorten a time limit, or reduce a fee, after thirty (30) days' published notice.

20 Coming into Force

- 20.1 This Code comes into force on the date of the Resolution adopting it, and applies to Records created before and after that date.
- 20.2 Within ninety (90) days after this Code comes into force, the Records Officer shall publish the Records listed in section 4.1 that are in the custody or control of the First Nation.
- 20.3 Council shall put this Code to the Electors for ratification within twelve (12) months after it comes into force.

Adopted by Council

Resolution No. and date

Signature of Chief

Signature of Councillor

Ratified by the Electors

Date of vote and votes for / against / total
Electors on the List

Signature of the Electoral Officer

Explanatory Notes

1. Purpose

This Code gives Members a right to the Records of the First Nation, sets one closed list of reasons for refusing, protects personal information, and sets rules for keeping and destroying Records. These notes are not part of the Code.

2. Key provisions

- A written decision within 30 days, with one extension of 15 days. No decision means a deemed refusal that can be appealed the next day (section 6).
- No fee for electronic Records or for the first 50 pages (section 7).
- Seven Exceptions only. Any other reason, including a pending Election or a direction from any person, is void (section 9).
- Remuneration, expenses, contract amounts, and how each member of Council voted are never withheld (section 10).
- Records the Documents require to be published are posted without a request and kept online for ten years (section 4).
- Personal information is used only for the purpose it was collected for. Members of Council do not receive personal information about individual Members unless a Document requires it for a decision of Council (section 11).
- Breaches of personal information are reported to the people affected within 14 days (section 12.2).
- A public log of every request and decision, without names (section 16).
- Appeals to the Appeals Panel, decided within 20 days (section 17).

3. Legal sources

Source	Provision
First Nations Financial Transparency Act, ss. 7, 8	Copies of the audited consolidated financial statements and Schedule of Remuneration and Expenses to members on request, and publication on an Internet site within 120 days
Indian Act, s. 86(2)	A copy of a by-law to any person on request
Members' Bill of Rights (Document 04), ss. 3, 6	Members' rights to information and to privacy

Federal access to information and privacy statutes generally do not apply to the governmental activities of a band council, which is why this Code sets the rules for the First Nation. Legal counsel should confirm whether the *Personal Information Protection and Electronic Documents Act* applies to any commercial activity of a First Nation Business Entity.

4. Records required before adoption

- Any existing records, confidentiality, or privacy policy, and any records retention practice.